# Digital Extremes Privacy Policy

***Last Updated: March 12th 2024***

Digital Extremes Ltd.'s Privacy Policy

Digital Extremes Ltd., located at 250 York Street, London, Ontario in London Ontario, N6A 6K2, ("we" or "us") provides this website and is the controller of your personal data.

Our data privacy team may be contacted at privacy@digitalextremes.com.

We strive to be transparent about how we collect and use your information. The following policy outlines how we collect, use, share, and protect your information.

This policy applies to all of Digital Extremes Ltd's games and services, including Warframe, as well as the following websites: https://www.digitalextremes.com, https://www.warframe.com, https://www.soulframe.com (collectively, the "**SERVICE**").

Here is a summary of the information contained in this privacy policy ("**PRIVACY POLICY**"). This summary is to help you navigate the Privacy Policy and it is not a substitute for reading everything! You can use the hyperlinks below to jump directly to particular sections.

## What information do we need to provide the Service?

If you register an account to use the Service then we will need some information from you to set this up. When you register an account with us, you will be able to use your registration details to access your account from any of the platforms where we make our Service available. If you choose, you can provide certain other information to personalise the gaming experience and enable Service features, or participate in the Service. If you need to get in touch with us then we will also retain some information so that we can get back in touch with you and address any concerns. More Information.

## How will we use your information?

We use your information to provide the many functions and services that comprise the Service, to use your information for account verification, security purposes and to support and improve the Service. We do not share your information with any third parties, except where we need to in order to provide the Service (e.g., use local cloud providers or to back up your data; use our affiliates around the world to help us to deliver the Service) or monitor the success of our marketing and advertising programs, or we are instructed to by a court, authority or compelled by law. More Information.

## Who do we share your information with?

We use some third parties to help us deliver the best possible experience (e.g., cloud services to back up your data and support services). When we use a third party data processor, we only do this to process or store your information for the purposes described in this Privacy Policy. When you setup or log into your Digital Extremes account, this will involve some data sharing between us and the platform which you are using. We also have affiliates around the world who help us deliver the Service and we may be required by a court or legal obligation to disclose certain information in some circumstances. More Information.

## Where do we process your information?

Our servers are located in Canada, the Netherlands, Singapore, France or the United States of America. Your information can be accessed from outside of where you live by our support, engineering and other teams around the world, including the United States, Canada and the Philippines. More Information.

## How long do we keep hold of your information?

We generally retain your information for the period during which you maintain an account for the Service, after which time your data is deleted (as further described in this Privacy Policy), unless otherwise required by applicable laws. More Information.

## How can I exercise my rights over my information?

Depending on where you are, you may have certain rights with respect to your information, such as rights of access, to receive a copy of your data, or to delete your data or restrict or object to our processing of your data. More Information.

## How to get in touch with us

If you have any questions about anything in this Privacy Policy, or want to exercise any rights, please contact us here.

## How will we notify you of changes?

Changes to this Privacy Policy will be posted here. Please check this page frequently to see if there are any updates or changes to this Privacy Policy. More Information.

## Contact Information

| Contact | Name | Contact details |
|---|---|---|
| Data Controller | Digital Extremes Ltd | privacy@digitalextremes.com |
| EU Representative | Bird & Bird GDPR Representative Ireland | eurepresentative.digitalextremes@twobirds.com<br>Key contact: Vincent Rezzouk-Hammachi |
| UK Representative | Bird & Bird GDPR Representative Services UK | ukrepresentative.digitalextremes@twobirds.com<br>Key contact: Vincent Rezzouk-Hammachi |

# Welcome to Warframe!

This Privacy Policy explains the when, how and why when it comes to processing of your personal information in connection with and websites for Warframe including https://www.digitalextremes.com, https://www.warframe.com and https://www.soulframe.com (the "**SERVICE**"), and sets out your choices and rights in relation to that information. Please read it carefully – it is important for you to understand how we collect and use your information, and how you can control it.

If you do not agree to the processing of your personal information in the way this Privacy Policy describes, please do not provide your information when requested and stop using the Service. By using the Service you are acknowledging our rules regarding your personal information as described in this Privacy Policy.

This Service has been developed by Digital Extremes Ltd. ("we", "us", "our").

For the purpose of data protection laws, the data controller of your personal information in Ireland is Digital Extremes Ltd.. The registered address of Digital Extremes Ltd. is 250 York Street, London, Ontario, N6A 6K2.

Our representatives for data protection purposes in certain jurisdictions are as follows:

| Jurisdiction | Name | Address | Contact details |
|---|---|---|---|
| EU | Bird & Bird GDPR Representative Ireland | Deloitte House, 29 Earlsfort Terrace, Dublin 2, D02 AY28 | eurepresentative.digitalextremes@twobirds.c<br>Key contact: Vincent Rezzouk-Hammachi |
| UK | Bird & Bird GDPR Representative Services UK | 12 New Fetter Lane, London, EC4A 1JP, United Kingdom | ukrepresentative.digitalextremes@twobirds.c<br>Key contact: Vincent Rezzouk-Hammachi |

Please reach out to us if you have any questions or concerns regarding the processing of your personal information: you can contact us anytime at privacy@digitalextremes.com.

# INFORMATION WE COLLECT

As you engage with our Service, sometimes you will be asked to provide us with personal information. The information that you are asked to provide and the reasons why you are asked to provide it will be made clear to you at the point we request it. Providing us with this information is entirely voluntary but if you choose not to provide it you may not be able to access some of our games or services. Here are examples of when we directly ask you to provide us with information:

- Account related data provided by you upon account creation, including email, account name, password, and platform.
- Account related data provided by you when you verify your identity upon accessing your account.

- Any information provided by you in connection with contacting our Customer Support
- Information that is provided by using the in-game chat features or our forums.
- Information provided in conjunction with contests, competitions or surveys.

We also collect a variety of information from you automatically as a result of you using our service and through your interactions on our websites. Some of this information is collected anonymously while at other times it is collected and associated with other information you've already provided. In cases where this information is linked to your account information, or if the info collected can be used to trace back to a specific person, then we consider this information to be personal data. Here is the information that is collected automatically when you use our services:

- IP address
- Geographic location information using IP information
- Basic hardware and operating system information
- Event data related to how your account information is modified or updated over time.
- Transactional data around virtual currency purchases and in-game purchases
- Advertising referral information when you sign up using one of our partner's ad campaigns
- Cookie data regarding how you engage with our websites (see "Which Cookies we or third parties use" section below)

# HOW WE USE YOUR INFORMATION

This section provides more detail on the types of personal information we collect from you, and why. For users who live in the United Kingdom, the European Economic Area, Switzerland, Thailand, Brazil or Turkey ("**RELEVANT JURISDICTION**"), it also identifies the legal basis under which we process your data.

## Information you provide to us

(either directly or through a third party).

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| Personal Information | Use | Legal Basis (only relevant if you are located in a Relevant Jurisdiction) |
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| **ACCOUNT SETUP INFORMATION**: Account ID, alias, email, password, hardware ID, third party identifier, IP address. | We use this information to your account in order to provide access to the Service, or for viewing as part of the Twitch Armoury service, in accordance with your request. | Necessary to perform our contract with you to provide the Service. |
| **ACCOUNT LOGIN INFORMATION**: Account ID, alias, email, password, hardware ID, third party identifier, IP address. | We use this information to allow you to login to the Service from any of the third-party platforms in accordance with your request. Where you access your account from a different platform to one you used previously, we may verify whether you are using a different or unrecognised device, [and we may send you a verification email to confirm that you are expecting a login via this device]. | Necessary to perform our contract with you to provide the Service. |
| **MOBILE ACCESS**: Account information including email, password, alias, hardware ID, third party identifier, IP address. | We use this information to allow you to login to the Service from a mobile app. Where you used a different platform to access the Service previously, we may verify whether you are using a different or unrecognised device, [and we may send you a verification email to confirm that you are expecting a login via mobile]. | Necessary to perform our contract with you to provide the Service. |
| **GAME DEVELOPMENT AND OPTIMISATION**: Entity / avatar data, gameplay related data (i.e. account state, aggregate account data, play time, item acquisition rates, inventory amounts, ability usage, account ID of friends). | We use this information in connection with development feedback and optimisations, including to provide functionality, gameplay and content improvements to the game. | Legitimate interest - our interest in improving your and others' future experiences with the game. |

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| IP address, account ID, hashed credentials. | you to use the match-making services of the Service and hosted gameplay. | perform our contract with you to provide the Service. |
| **CUSTOMER SUPPORT**: Any information voluntarily provided to customer support including email, login data, gameplay data and transaction data. | We use this information to help provide support to you in relation to the issue you've contact us about. | Necessary to perform our contract with you to provide support for the Service. |
| **SECURITY**: IP address, IP lookup information, account ID. | We use this information to help provide security and network protection mechanisms. | Necessary to perform our contract with you to provide support for the Service. |
| **FORUM**: Account information including email, IP address, password and alias, and forum postings. | We use this information to allow you to use the forum services. | Necessary to perform our contract with you to provide the Service. |
| **OPT-IN MARKETING**: email, account alias, platform, transaction data. | We use this information when you voluntarily provide it for the purposes of providing you with update and promotional emails. | We collect this information with your consent. |
| **FRIENDS LIST** (manually added by you): friend aliases. | We use this information so that you can connect with your friends and share game activities with your friends. | Necessary to perform our contract with you to provide the Service and connect you with your friends. |
| **DATA SUBJECT REQUEST INFORMATION**: alias, email address, transaction history, login history, proof of user's identity. | If a data subject request is submitted, we use this information to confirm the requestor's identity, your rights and to process the request. | Necessary to comply with a legal obligation. |

## Information collected automatically or generated as part of the Service

| Personal Information | Use | Legal Basis (only relevant if you are located in a Relevant Jurisdiction) |
|---|---|---|
| **TRANSACTION RECORDS**: payments through payment processors or respective distribution platforms, cost, product purchased, IP address, details of transactions linked to alias, payment method, currency paid, vendor, item purchased, price paid, discount applied, shipping information. | We use this information to facilitate your payment and maintain a record of your transaction history. | Necessary to perform our contract with you to facilitate your payment and provide you with details of your transactions. |
| **GENERATED ACCOUNT ID** | We generate this and use this to store your Service gameplay data (including level and progress) with your profile, and it allows you to connect to the Service server and log in. | Necessary to perform our contract with you to provide the Service. |
| **GAMEPLAY INFORMATION**: Various gameplay related data (i.e. account state, aggregate account data , mission time, item acquisition rates, inventory amounts, ability usage, account ID of friends) | We use this information to provide the game and information about your gameplay and progress. | Necessary to perform our contract with you to provide the Service. |
| **IP ADDRESS** | We use this information to:<br>• Allow you to connect to the Service server<br>• Optimize your matchmaking experience | Necessary to perform our contract with you to provide the Service. |

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| | • Determine your country of origin<br>• Security and anti-cheat functions | |
| **ANTI-CHEAT AND SECURITY RELATED INFORMATION**: basic hardware information, uniquely generated hardware ID, IP address, running process list (PC only), operating system information, user account information, processes, memory, and driver which is related to the game running, user behaviour and status that may be related to cheating software. | We use this information:<br>• for security and verification purposes, including to detect and observe cheating behaviours and consider restricting or banning access to the Service<br>• identify and address bugs and assess game function for optimisation<br>• solve game crashes and optimise compatibility of hardware with the game<br>• to combat users registering for multiple accounts<br>• If your account is determined to breach our Terms of Service, we may consider restricting or banning your access to the Service | Necessary to perform our contract with you to provide the Service. |
| **ADVERTISING**: Account information, user ID, purchase data. | We use this information to display advertising network purchases on an impression basis that optimizes based on return on spend or targets based on in-game data. | We collect this information with your consent. |

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| **ADVERTISING EFFECTIVENESS INFORMATION**: Advertising ID and select device information (IP address, ad source, engagement data and search terms). | If you click on a link that advertises the Service, we store the Advertising ID for that advertisement with your profile. | Necessary to perform our contract with you to provide the Service. |
| **CONTESTS, REWARDS, GIVEAWAYS AND SWEEPSTAKES INFORMATION**: account information, name, email address, alias, mailing address, gameplay information, view/claim data. | If you participate in a contest, giveaway, or sweepstakes event, we use this information to send you your prize if you win. | We collect this information with your consent. |
| **CHAT DATA**: audio and text communicated to other players in-game (message history), on our forum, and through public chat channel or sent to peers, including alias and account ID. | If you engage with chat services then we will process such data in order to deliver your messages to other users. | Necessary to perform our contract with you to provide the chat services in-Service. |
| **FINANCIAL REPORTING**: Purchasing data, activity data, and IP lookup (country) data | We use this information to complete our financial reporting and disclosure obligations to parent company, tax agencies and regulators. | Necessary to comply with a legal obligation. |

# WHICH COOKIES WE OR THIRD PARTIES USE

We use cookies and other similar technologies (e.g. web beacons, log files, scripts and eTags) ("**COOKIES**") to enhance your experience using the Service. Cookies are small files which, when placed on your device, enable us to provide certain features and functionality.

Some of the data processing operations about which we inform you in this Privacy Policy require that we or third parties use cookies. Below you will find a detailed list of these Cookies:

## Cookie List

A cookie is a small piece of data (text file) that a website – when visited by a user – asks your browser to save on your device in order to remember information about you, such as your language preference or login information. Those cookies are set by us and called first-party cookies. We also use third-party cookies – which are cookies from a domain different than the domain of the website you are visiting – for our advertising and marketing efforts. More specifically, we use cookies and other tracking technologies for the following purposes:

## Strictly Necessary Cookies

These cookies are necessary for the website to function and cannot be switched off in our systems. They are usually only set in response to actions made by you which amount to a request for services, such as setting your privacy preferences, logging in or filling in forms. You can set your browser to block or alert you about these cookies, but some parts of the site will not then work. These cookies do not store any personally identifiable information.

| Cookie Subgroup | Cookies | Cookies used | Lifespan |
|---|---|---|---|
| warframe.com | bm_sz , ak_bmsc , bm_sv | First Party | A few seconds, A few seconds, A few seconds |
| forums.warframe.com | AWSALBCORS , AWSALB , ips4_IPSSessionFront , ips4_noCache | First Party | 6 Days, 6 Days, Session, A few seconds |
| www.warframe.com | XSRF-TOKEN , warframe_session , OptanonConsent , OptanonAlertBoxClosed | First Party | 3 Days, 3 Days, 365 Days, 365 Days |

## Performance Cookies

These cookies allow us to count visits and traffic sources so we can measure and improve the performance of our site. They help us to know which pages are the most and least popular and see how visitors move around the site. All information these cookies collect is aggregated and therefore anonymous. If you do not allow these cookies we will not know when you have visited our site, and will not be able to monitor its performance.

| Cookie Subgroup | Cookies | Cookies used | Lifespan |
|---|---|---|---|

| | | | |
|---|---|---|---|
| t.warframe.com | session_id | First Party | 365 Days |
| warframe.com | _ga , _gid , _gat_UA- , _gclxxxx | First Party | A few seconds, 1 Day, A few seconds, 89 Days |
| twitch.tv | server_session_id, unique_id_durable, unique_id, referrer_url | Third Party | Session, 396 Days, 396 Days, A few seconds |
| giphy.com | _ga | Third Party | 730 Days |

## Functional Cookies

These cookies enable the website to provide enhanced functionality and personalisation. They may be set by us or by third party providers whose services we have added to our pages. If you do not allow these cookies then some or all of these services may not function properly.

| Cookie Subgroup | Cookies | Cookies used | Lifespan |
|---|---|---|---|
| warframe.com | nc_pg_xxxxxxx | First Party | 365 Days |
| www.warframe.com | landing , language | First Party | 365 Days, 365 Days |
| twitch.tv | api_token | Third Party | 396 Days |

## Targeting Cookies

These cookies may be set through our site by our advertising partners. They may be used by those companies to build a profile of your interests and show you relevant adverts on other sites. They do not store directly personal information, but are based on uniquely identifying your browser and internet device. If you do not allow these cookies, you will experience less targeted advertising.

| Cookie Subgroup | Cookies | Cookies used | Lifespan |
|---|---|---|---|

| | | | |
|---|---|---|---|
| www.warframe.com | __lt__sid , __lt__cid | First Party | A few seconds, 729 Days |
| warframe.com | _fbp , pt_ , _rdt_uuid | First Party | 90 Days, A few seconds, 90 Days |
| www.facebook.com | | Third Party | Session |
| twitter.com | personalization_id | Third Party | 729 Days |
| doubleclick.net | test_cookie | Third Party | A few seconds |
| cdn.syndication.twimg.com | lang | Third Party | Session |
| youtube.com | YSC, CONSENT, VISITOR_INFO1_LIVE | Third Party | Session, 6000 Days, 180 Days |
| twitch.tv | experiment_overrides | Third Party | 395 Days |

## Social Media Cookies

These cookies are set by a range of social media services that we have added to the site to enable you to share our content with your friends and networks. They are capable of tracking your browser across other sites and building up a profile of your interests. This may impact the content and messages you see on other websites you visit. If you do not allow these cookies you may not be able to use or see these sharing tools.

| Cookie Subgroup | Cookies | Cookies used | Lifespan |
|---|---|---|---|
| line.me | _ldbrbid | Third Party | 729 Days |

# How We Store and Share Your Personal Information

Pursuant to our contract with you to provide you with the Service, your personal information will be processed on servers that may not be located where you live. No matter where our servers are located, we take appropriate measures to safeguard your rights in accordance with this Privacy Policy. Our servers for the Service are located in:

- Canada;
- the USA;
- Netherlands;
- Singapore; and
- France.

In addition, your information can be accessed from outside of where you live by our support, engineering and other teams around the world, including Canada, the Philippines and the USA.

**ONLY WHERE NECESSARY** will we share your personal information with third parties. Situations where this occur are:

- **THIRD PARTIES** that provide services in support of the Service, including payment processing partners, providers of cloud services that process information identified in this policy on their servers for the purpose of providing the Service, for the purpose of processing support ticket ID and support communication, and for the purpose of providing marketing and advertisements and monitoring the success of our marketing and advertising programs. All companies providing services for us as data processors are prohibited from retaining, using, or disclosing your personal information for any purpose other than providing us with their services.
- **PLATFORM AND DISTRIBUTION PARTNERS** that provide services enabling you to purchase and download our Service across platforms and devices (for example, Steam, Xbox, Nintendo Switch, and PlayStation). When you setup or log into your Digital Extremes account, this will involve some personal information (including account related data) being shared between us and the platform which you are using, in order to provide you with access, to authenticate and verify access, and to ensure that your progression through the game remains up-to-date.
- **COMPANIES WITHIN OUR CORPORATE GROUP** who process your personal information in order to operate the Service around the world. All related group companies may only use your personal information in accordance with this Privacy Policy.

- **REGULATORS, JUDICIAL AUTHORITIES AND LAW ENFORCEMENT AGENCIES, AND THIRD PARTIES FOR SAFETY, SECURITY, OR COMPLIANCE WITH THE LAW.** There are circumstances in which we are legally required to disclose information about you to authorities, such as to comply with a legal obligation or processes, enforce our terms, address issues relating to security or fraud, or protect our users. These disclosures may be made with or without your consent, and with or without notice, in compliance with the terms of valid legal process such as a subpoena, court order, or search warrant. We are usually prohibited from notifying you of any such disclosures by the terms of the legal process. We may seek your consent to disclose information in response to a governmental entity's request when that governmental entity has not provided the required subpoena, court order, or search warrant. We may also disclose your information to:
    - enforce our terms and conditions and other agreements, including investigation of any potential violation thereof;
    - detect, prevent or otherwise address security, fraud or technical issues; or
    - protect the rights, property or safety of us, our users, a third party or the public as required or permitted by law (exchanging information with other companies and organisations for the purposes of fraud protection and credit risk reduction).
- **A THIRD PARTY THAT ACQUIRES ALL OR SUBSTANTIALLY ALL OF US OR OUR BUSINESS**. We may also disclose your information to third parties if we either: (a) sell, transfer, merge, consolidate or reorganize any part(s) of our business, or merge with, acquire or form a joint venture with, any other business, in which case we may disclose your data to any prospective buyer, new owner, or other third party involved in such change to our business; or (b) sell or transfer any of our assets, in which case the information we hold about you may be sold as part of those assets and may be transferred to any prospective buyer, new owner, or other third party involved in such sale or transfer.

# HOW WE PROTECT YOUR INFORMATION

We are committed to maintaining the privacy and integrity of your personal information no matter where it is stored. We have information security and access policies that limit access to our systems and technology, and we protect data through the use of protection measures such as encryption. Unfortunately, the transmission of information via the internet is not completely secure. Although we will implement and maintain reasonable measures to protect your personal information, we cannot guarantee the security of the information transmitted through the Service or otherwise via the Internet; any transmission is at your own risk.

## DATA RETENTION

We do not keep your data for longer than is necessary unless we are required to do so under law. For further details on how long we keep your data, please refer to the time periods set out below.

| Personal Information | Retention Policy |
|---|---|
| **ACCOUNT SETUP INFORMATION**: Account ID, alias, email, password, hardware ID, IP address, third party identifier | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days. |
| **ACCOUNT LOGIN INFORMATION**: Account ID, alias, email, password, hardware ID, IP address, third party identifier | Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **MOBILE ACCESS**: Account information including email, password and alias, account ID, hardware ID, IP address, third party identifier | |
| **GAME DEVELOPMENT AND OPTIMISATION**: Entity / avatar data, gameplay related data (i.e. account state, aggregate account data, play time, item acquisition rates, inventory amounts, ability usage, account ID of friends). | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **MATCHMAKING SERVICES**: IP address, account ID, hashed credentials. | Stored for 30 days. |
| **CUSTOMER SUPPORT**: Any information voluntarily provided to customer support including email, login data, gameplay data and transaction data | Support data is deleted within 30 days of a lawful request from you for the erasure of such data (see the Erasure section of this privacy policy). |

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| SERVER: IP addresses, IP location information, account ID | Stored for 365 days. |
| | An exception is that logs which are deemed to be offensive remain in the database in order to provide customer support. |
| **FORUM**: Account information including email, password and alias, and forum postings | Stored for the lifetime of the Service unless an account deletion request is received and then it is deleted or anonymized within 30 days.<br><br>Data will be retained for 1 year after the Service is shut down. |
| **OPT-IN MARKETING**: email, account alias, platform | Your voluntary participation in marketing emails and promotions can be revoked at any time through the account management tool. Otherwise it is stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days. Opt out requests may take up to 48 hours to process.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **FRIENDS LIST** (manually added by you): friend aliases | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |

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| **DATA SUBJECT REQUEST INFORMATION**: alias, email address, transaction history, login history, proof of user's identity | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days. |
| **TRANSACTION RECORDS**: payments through payment processors or respective distribution platforms, cost, product purchased, IP address, details of transactions linked to alias, payment method, currency paid, vendor, item purchased, price paid, discount applied, shipping information. | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then for the duration of any retention periods for which such data must be retained in order to comply with our legal obligations. |
| **GENERATED ACCOUNT ID** | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **GAMEPLAY INFORMATION**: Various gameplay related data (i.e. account state, aggregate account data , mission time, item acquisition rates, inventory amounts, ability usage, account ID of friends) | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |

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|---|---|
| | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **ANTI-CHEAT AND SECURITY RELATED INFORMATION**: basic hardware information, IP address, running process list (PC only), operating system information, user account information, processes, memory, and driver which is related to the game running, user behaviour and status that may be related to cheating software. | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **ADVERTISING**: Account information, user ID, purchase data. | Stored for the lifetime of the Service unless an account deletion request is received and then it is deleted or anonymized within 30 days.<br><br>Data will be retained for 1 year after the Service is shut down. |
| **ADVERTISING EFFECTIVENESS INFORMATION**: Advertising ID and select device information (IP address, ad source, engagement data and search terms). | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **CONTESTS, REWARDS, GIVEAWAYS AND SWEEPSTAKES INFORMATION**: account information, name, email | Stored for up to 1 year following the contest, giveaway or sweepstakes. |

address, alias, mailing address, [illegible], view/claim data.

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| **CHAT DATA**: Audio | We do not store this information. Your data is not transferred through our game servers, but it is transferred directly from client to client through a voice-enabled service node. |
| **CHAT DATA (INCLUDING FOR MONITORING AND LOGGING)**: Public chat records (Region, Trading and Recruiting chat room) | Chat transcripts of private communications are not retained by Digital Extremes unless the content is reported as inappropriate and/or for breaching our terms of service where they are retained for 30 days after which only recorded violations are retained (see below).<br><br>Public channel chat data is retained for a year.<br><br>Any recorded violations of the End User License Agreement or Terms of Service are stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |
| **CHAT DATA (INCLUDING FOR MONITORING AND LOGGING)**: Forum posts | Stored for the lifetime of your use of the Service (i.e. until account deletion in accordance with your request) and then deleted within 30 days.<br><br>Where you do not request for account deletion, such data will be retained for 1 year after the Service is shut down, before it is deleted. |

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|---|---|
| **FAILED LOGGING**: Personal data, activity data, and IP lookup (country) data | Stored for the lifetime of the Service unless an account deletion request is received and then it is deleted or anonymized within 30 days.<br><br>Data will be retained for 1 year after the Service is shut down. |

If we are required to retain your information beyond the retention periods set out above, for example to comply with applicable laws, we will store it separately from other types of personal information.

# YOUR RIGHTS

Some jurisdictions' laws grant specific rights to users of the Service, which are set out in this section.

This section entitled "Your Rights" applies to users that are located in the Relevant Jurisdictions. If you are located in a territory outside a Relevant Jurisdiction, please refer to the Supplemental Jurisdiction-Specific Terms for an overview of your rights and how these can be exercised.

The sub-sections entitled "Right Of Access", "Right To Rectification", and "Right To Erasure" also apply to users that are located in Canada.

## Right Of Access

You have the right to access personal information we hold about you, how we use it, and who we share it with. You can access the personal information you have provided as part of your account by submitting a request through our Support page.

## Right To Portability

You have the right to receive a copy of certain personal information we process about you. This comprises any personal information we process on the basis of your consent (e.g., advertising) or pursuant to our contract with you (e.g., customer support), as described above in the section "How we use your personal information". You have the right to receive this information in a structured, commonly used and machine-readable format. You also have the right to request that we transfer that personal information to another party, with

certain exceptions. We will provide further information to you about this if you make such a request.

If you wish for us to transfer such personal information to a third party, please ensure you detail that party in your request. Note that we can only do so where it is technically feasible. Please note that we may not be able to provide you with personal information if providing it would interfere with another's rights (for example, where providing the personal information we hold about you would reveal information about another person or our trade secrets or intellectual property).

## Right To Rectification

At any time you can update your Account Information by logging in to your account profile on our website. If for whatever reason you believe the personal information we have about you is inaccurate or incomplete and requires changes, please notify us through our Support page or by using the "How to contact us" section below.

## Right To Erasure

You can delete your account and have the right to request that we delete Personal Data that we store on you. You can do this by contacting our Support page on our website and requesting your account to be deleted. We ensure that all deletion requests are satisfied within one month upon receipt of your request. Please note that once an account is deleted there is no way to recover it. Some information may be retained by us to the extent we need to satisfy a legal requirement or for security purposes. Some information will also be retained anonymously.

We may need to retain personal information if there are valid grounds under data protection laws for us to do so (for example, for the defense of legal claims or freedom of expression) but we will let you know if that is the case. Where you have requested that we erase personal information that has been made available publicly on the Service and there are grounds for erasure, we will use reasonable steps to try to tell others that are displaying the personal information or providing links to the personal information to erase it too.

## Right To Restrict Processing to Storage Only

You have a right to require us to stop processing the personal information we hold about you other than for storage purposes in certain circumstances. Please note, however, that if we stop processing the personal information, we may use it again if there are valid grounds under data protection laws for us to do so (for example, for the defence of legal claims or for another's protection). As above, where we agree to stop processing the

personal information, we will try to tell any third party to whom we have disclosed the rectified personal information so that they can stop processing it too.

## Right To Withdraw Consent

Some of our processing is based on your consent. You can withdraw your consent at any time without impact to data processing activities that have taken place before such withdrawal or to any other existing legal justification of the processing activity in question.

Where consent is required to process your personal information, if you do not consent to the processing or if you withdraw your consent we may not be able to deliver the expected service.

## Right To Object

YOU HAVE THE RIGHT TO OBJECT TO US PROCESSING YOUR PERSONAL DATA AT ANY TIME WHEN THE PROCESSING IS BASED ON OUR LEGITIMATE INTERESTS (AND NOT, FOR EXAMPLE, A LEGAL OBLIGATION) ON GROUNDS RELATING TO YOUR PARTICULAR SITUATION. IF YOU OBJECT WE WILL NO LONGER PROCESS YOUR PERSONAL DATA UNLESS THERE ARE COMPELLING AND PREVAILING LEGITIMATE GROUNDS FOR THE PROCESSING OR THE DATA IS NECESSARY FOR THE ESTABLISHMENT, EXERCISE OR DEFENCE OF LEGAL CLAIMS. IF YOU DO NOT WANT US TO PROCESS YOUR PERSONAL DATA FOR MARKETING ACTIVITIES, YOU CAN MAKE THOSE CHANGES ON YOUR DATA PERMISSIONS PAGE HERE OR CONTACT US ANY TIME VIA E-MAIL AT privacy@digitalextremes.com.

## Right To Proceed And To Take Legal Actions

In the event that you wish to make a complaint about how we process your personal information, please contact us in the first instance and we will endeavour to deal with your request as soon as possible. This is without prejudice to your right to launch a claim with the data protection authority in the country in which you live or work where you think we have infringed data protection laws

You also have the right to take legal actions in relation to any breach of your rights regarding the processing of your Personal Data.

## Announcements

We may from time to time send you announcements when we consider it necessary to do so (for example, when we temporarily suspend access to the Service for maintenance, or security, privacy or administrative-related communications). You may not opt-out of these service-related announcements, which are not promotional in nature.

You may choose to stop receiving personalized advertising or marketing promotions from us when using the Service by clicking here, following the opt out instructions included in the Settings section of the Service or you can contact us by using the “How to contact us” section below.

## Further Rights

Where processing of your Personal Data is either based on your consent or necessary for the performance of a contract with you and processing is carried out by automated means, you have the right to receive the Personal Data you have provided in a structured, commonly used and machine-readable format or to have your personal data transmitted directly to another company, where technically feasible (data portability).

Further, you have the right not to be subject to any automatic individual decisions which produce legal effects on you or similarly significantly affects you.

## How To Exercise Your Rights

You can exercise your rights by contacting our Support Page or by using the “How to contact us” section below. We satisfy these requests within one month upon receipt of your request. If the request affects the rights and privacy of others we reserve the right to refuse to act on the request. If your request is manifestly unfounded or excessive, we reserve the right to charge a reasonable fee or to refuse to act on the request.

Please note that we may need to request information from you to confirm your identity and establish your entitlement to these rights.

# CHILDREN

None of our services or content on our websites are designed or intended for children under 16 years of age. Our content is in compliance with the Children's Online Privacy Protection Act (COPPA) and will never be directed at children under 16 years of age. If you are under 16 years of age, you are not permitted to access the websites or games unless your parent or guardian has provided express consent and accepts this Agreement along with all applicable end-user or similar license agreements on your behalf prior to your use of the websites or games. Please see our Terms of Service and End-User License Agreement for additional information.

We do not knowingly collect personal information from children under these ages for any purpose. If you believe that we have personal information of a child under these ages

without parental/guardian consent, or if you are the parent or guardian of the user and believe such information is present, please contact us at privacy@digitalextremes.com and we will delete such information.

# UPDATES TO THIS POLICY

From time to time we may update this policy for various reasons, including regulatory changes, changes in the scope of our services and advancements in our processes. We will take appropriate measures to inform you in the event of a significant change to this policy. Please refer to the date at the top of the page to see when the policy was last updated.

# LANGUAGE

Except as otherwise prescribed by law, in the event of any discrepancy or inconsistency between the English version and local language version of this privacy policy, the English version shall prevail.

# HOW TO CONTACT US

If you have any questions or would like to make a request in connection with your rights listed above, please contact our Support Team through our websites or send us an email at privacy@digitalextremes.com.

# SUPPLEMENTAL TERMS – JURISDICTION-SPECIFIC

Some jurisdictions' laws contain additional terms for users of the Service, which are set out in this section.

If you are a user located in one of the jurisdictions below, the terms set out below under the name of your jurisdiction apply to you in addition to the terms set out in our Privacy Policy above.

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## Brazil

This section applies to users located in Brazil:

This Privacy Policy is provided in Portuguese for users located in Brazil. In case of dispute, the Portuguese version of this Privacy Policy shall prevail.

## Consent Revocation

Whenever we use your personal information based on your consent, you may revoke the consent that you have previously given for the collection, use and disclosure of your personal information, subject to contractual or legal limitations. To revoke such consent, you may terminate your account through our Support Team or you can contact privacy@digitalextremes.com. This may affect our provision of the Service to you.

## Parental and Guardian Consent

If you are under the age of 18, you should not use the Service for any purpose without first obtaining parental/guardian agreement to this Privacy Policy (both for themselves and on your behalf). We do not knowingly collect personal information from any children under the age of 18 without such consent. Please contact our privacy team at privacy@digitalextremes.com if you believe we have any personal information from any children under the age of 18 without such parental/guardian consent – we will promptly investigate (and remove) such personal information.

BY ACCEPTING THIS PRIVACY POLICY, YOU EXPRESSLY STATE THAT YOU AUTHORISE US TO COLLECT, USE, STORE, AND PROCESS YOUR PERSONAL INFORMATION, INCLUDING, DISCLOSING TO THIRD PARTIES, TO THE EXTENT PROVIDED BY THIS PRIVACY POLICY.

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# California

This section applies to California residents covered by the California Consumer Privacy Act of 2018 ("**CCPA**").

## Collection and Disclosure of Personal Information

Over the past 12 months, we have collected and disclosed the following categories of personal information from or about you or your device:

- Identifiers, such as your Account ID, IP address, device ID, email address, and nickname.

- Internet or other electronic network activity information, such as your information regarding your use of the Service, including gameplay information and time stamps of actions, log-in and clickstream data and other Device Information as described in the main Privacy Policy. This information is collected directly from you and your device.
- Commercial information about any transactions within the Service such as what products were purchased and how much they cost. This information is collected directly from you and your device.
- Geolocation data such as your region location when you set up your account and choose to provide this information for the Service. This information is collected directly from you.
- Audio information such as your audio messages sent to other players in-game. This information is collected directly from you.
- Other information described in subdivision (e) of Section 1798.80. This information is collected directly from you in the context of being our consumer.

**WE COLLECT YOUR PERSONAL INFORMATION FOR THE FOLLOWING PURPOSES:**

- To provide you with the Service, maintain your account, provide customer service, process payments, and deliver audio and text messages.
- To improve our services, including the functionality of the Service.
- For security and verification purposes, including to prevent and detect fraudulent activity.
- To address and remediate technical issues and bugs.

For additional information about what each type of personal information is used for, see this chart in the main portion of the Privacy Policy.

**WE DISCLOSE PERSONAL INFORMATION TO THE FOLLOWING TYPES OF ENTITIES:**

- Other companies within our corporate group who process your personal information in order to operate the Service.
- Other companies that provide services on our behalf in support of the Service and who are prohibited by contract from retaining, using, or disclosing personal information for any purpose other than for providing their services to us.
- Regulators, judicial authorities and law enforcement agencies
- Entities that acquire all or substantially all of our business.

**IN THE PAST 12 MONTHS, WE HAVE NOT SOLD PERSONAL INFORMATION OF CALIFORNIA RESIDENTS WITHIN THE MEANING OF "SOLD" IN THE CCPA**.

## Rights under the CCPA:

If you are a California resident, you have the right to:

- Request we disclose to you free of charge the following information covering the 12 months preceding your request:
  - the categories of personal information about you that we collected;
  - the categories of sources from which the personal information was collected;
  - the purpose for collecting personal information about you;
  - the categories of third parties to whom we disclosed personal information about you and the categories of personal information that was disclosed (if applicable) and the purpose for disclosing the personal information about you; and
  - the specific pieces of personal information we collected about you;
- Request we delete personal information we collected from you, unless CCPA recognises an exception; and
- Be free from unlawful discrimination for exercising your rights including providing a different level or quality of services or denying goods or services to you when you exercise your rights under the CCPA.

We aim to fulfil all verified requests within 45 days pursuant to the CCPA. If necessary, extensions for an additional 45 days will be accompanied by an explanation for the delay.

## How to Exercise Your Rights

First, you may wish to log into your account and manage your data from there. If you are a California resident to whom the CCPA applies, you may also exercise your rights, if any, regarding other data by contacting our Support Team through our website or by sending us an email at privacy@digitalextremes.com.

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# Canada

If you are located in Canada and wish to obtain written information about our policies and practices with respect to our service providers located outside Canada, you may contact our Support Team through our website or by sending us an email at privacy@digitalextremes.com. Our privacy experts who monitor this email address are also able to answer any questions users may have about the collection, use, disclosure or storage of personal information by our service providers.

Where we use service providers who might have access to your personal information, we require them to have privacy and security standards that are comparable to ours. We use contracts and other measures with our service providers to maintain the confidentiality

and security of your personal information and to prevent it from being used for any purpose other than those provided in this Privacy Policy.

# China Mainland

## Consent

We will not collect and use your personal information without your consent, and you can withdraw the consent anytime. You should understand that when you withdraw consent, we will not collect and use your personal information and the personal information processing based on your previous consent remains valid.

## Parental and Guardian Consent

If you are under the age of 14, you should not use the Service for any purpose without first obtaining parental/guardian consent to this Privacy Policy (both for themselves and on your behalf). We do not knowingly collect personal information from any children under the age of 14 without such consent.

## Your Rights

We protect your personal information subject rights under PRC privacy laws, which includes the right to access, rectify, erase, copy personal information and etc.. For more information, you can see the sub-section “How To Exercise Your Rights” above.

# France

## Your Rights

Instructions for the processing of your personal data after your death

You have the right to provide us with general or specific instructions for the retention, deletion, and communication of your personal data after your death.

The specific instructions are only valid for the processing activities mentioned therein and the processing of these instructions is subject to your specific consent.

You may amend or revoke your instructions at any time.

You may designate a person responsible for the implementation of your instructions. This person shall have the right, in the event of your death, and be entitled to request their implementation from us. In the absence of designation or, unless otherwise provided for, in the event of the death of the designated person, their heirs will have the right to be informed of your instructions and to request their implementation from us.

When you wish to make such instructions, please contact our Support Team through our websites or by sending us an email at privacy@digitalextremes.com.

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# Hong Kong

As a Hong Kong data subject you have legal rights in relation to the personal information we hold about you (to the extent permitted under applicable laws and regulations).

You are entitled to make a subject access request to receive a copy of the data we process about you, a data correction request as well as a right to reject to the use of your personal data for direct marketing purposes. A fee may be chargeable by us for complying with a data access request.

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# Mexico

## Language

This Privacy Policy is provided in Spanish for users located in Mexico. In case of dispute, the Spanish version of this Privacy Policy shall prevail.

## Age Restrictions

You won't be able to use the Service unless you are 18 years old or you have obtained parental/guardian agreement to this Privacy Policy (both for themselves and on your behalf).

## Types of Personal Information We Use

For clarification purposes, in section 1 "Information we collect" and section 2 "How we use your personal information" you can find full details about the personal data we use. Therefore, we are providing you with complete information about the personal data we use, in terms of the Federal Law on Protection of Personal Data held by Private Parties and other applicable regulations.

Some of the purposes of processing stated above are for voluntary purposes, including to show you personalised recommendations and advertising. We may also use your personal data for the voluntary purpose of sending information to your email that we may consider relevant to you. You may object the processing of your personal data for voluntary purposes as stated in the section “Your Rights” below.

Please, be informed that we may also use your personal data to comply with legal obligations or requests from competent authorities, assert or defend our rights before the competent authorities / courts, respond to requests you send us in relation to your personal data and to carry out the transfer of personal data detailed in section 4 “How we store and share your personal information”.

## Data Transfer Consent

In general, we do not require your consent to carry out the transfers detailed in section 4 “How we store and share your personal information”. However, we require your consent to transfer your personal data to a third party that acquires all or substantially all of us or our business.

By using the Service and providing us with your personal data, you agree to the data transfers detailed above that require your consent. You may exercise your rights in connection with your personal data as stated in the section “Your Rights” below.

## Your Rights

The sub-sections entitled “Right Of Access”, “Right To Rectification”, “Right To Erasure”, “Right To Object”, “Right To Restrict Processing to Storage Only “, which includes the limitation to the use and disclosure of your personal data, and “Advertising” included in Section “Your Rights” above also apply to users that are located in Mexico.

You also have the right to revoke the consent that you have provided us to process your personal data.

To exercise any of your rights, contact our Support Team through our websites or by sending us an email at privacy@digitalextremes.com..

To know more about your rights, as well as the applicable means, procedures and requirements to exercise any of your rights, please contact our data privacy team at privacy@digitalextremes.com.

## Cookies

Through the use of cookies, we collect certain information related to your browsing and [illegible] may be considered personal data (detailed in the relevant sections above). You may be able to refuse or disable cookies by adjusting your browser settings. Because each browser is different, you should consult the instructions provided by your browser. If you choose to refuse, disable, or delete cookies, some of the functionalities of the Service may no longer be available to you. For more information about our use of cookies and how to disable them, please see the section entitled “Which Cookies We Or Third Parties Use” above.

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# Russia

If you are using the Service in Russia, by using the Service you consent to:

- for the purposes of the Russian Federal Law No. 152-FZ dated 27 July 2006 “On Personal Data” (as amended) or any replacement regulations, the processing of your information in accordance with this Privacy Policy; if legitimate interests, optimisation of the Service or carrying out of the contract are mentioned herein, you agree that, for the purposes of Russian law, the consent so provided can be considered an additional ground for processing (meaning that the processing is conducted with your consent); this consent also covers the processing of any cookies (to the extent that those qualify as personal data under Russian law);
- the cross-border transfer of your information to any country where we have databases or affiliates, in particular Canada, the Netherlands, Singapore, France and the United States of America;
- for the purposes of Article 152.1 of the Russian Civil Code, the processing of your image in accordance with this Privacy Policy; and
- for the purposes of Federal Law “On Marketing/Advertising”, that we may share advertising/marketing communications with you, unless you have opted-out from such communications.

The sub-sections “Right Of Access”, “Right To Rectification”, “Right To Erasure”, “Right To Restrict Processing To Storage Only”, “Right To Object” and “Advertising” of the section “Your Rights” above apply to users in the Russian Federation.

We will notify you of any material changes and may request you to acknowledge such changes. Unless we require your acknowledgment, you shall be deemed to have agreed to the changes if you continue using the Service after the notification.

As regards the representative for Russia, you can contact us at privacy@digitalextremes.com. Please include the word “Russia” in the subject line of your email.

## CONNECT WITH OTHER TENNO



WARFRAME

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